

HOUSE No. 122

The Commonwealth of Massachusetts

PRESENTED BY:

Rodney M. Elliott

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the preservation of existing pet cemeteries.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/10/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>3/7/2025</i>

HOUSE No. 122

By Representative Elliott of Lowell, a petition (accompanied by bill, House, No. 122) of Rodney M. Elliott and James Arciero that the Division of Animal Health be authorized to regulate the preservation of existing pet cemeteries. Agriculture.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4206 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the preservation of existing pet cemeteries.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 129 of the General Laws is hereby amended by adding the
2 following section:-

3 Section 49. (a) For the purposes of this section the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Pet”, any domestic animal that has been adapted or tamed to live in intimate association
6 with people but, not limited to, dogs, cats, rodents, fish, birds, snakes, turtles, lizards, frogs and
7 rabbits.

8 “Pet cemetery”, any plot of ground used or intended to be used, for the permanent burial
9 or disposition of the remains of a pet in a grave, a mausoleum, a columbarium, a vault or other

receptacle provided by any person for a fee, whether or not for profit, to veterinarians or members of the general public.

(b) The owner of any real property used or to be used for a pet cemetery shall file in the registry of deeds in which the real property is located, a dedication restricting the real property to be used only for such purposes as are usual and customary for the operation of a pet cemetery.

(c) The owner or operator of every pet cemetery shall keep adequate records of all purchasers of space for pet remains within the grounds of such pet cemetery.

(d) The director shall promulgate rules or regulations necessary to carry out this section.

SECTION 2. This act shall apply to any real property used as a pet cemetery, as defined in section 1, before, on or after the effective date of this act.